



File No.: EXP202206316

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RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On April 19, 2022, a complaint was received by this Spanish Agency for Data Protection (hereinafter, AEPD) submitted by A.A.A. (hereinafter, the complainant) against the INSTITUTO OFTALMOLÓGICO DE ***LOCALIDAD.1 B.B.B., S.L. with NIF ***NIF.1 (hereinafter, the respondent) for an alleged violation of Articles 5.1.f), 6.1, and 9 of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, regarding the protection of natural persons with regard to the processing of personal data and the free movement of such data, and repealing Directive 95/46/EC (hereinafter, GDPR).

In particular, for the following circumstances:

The complainant states that, after writing a review on Google, the response from the respondent consisted of the publication of her personal data, specifically, her name and surname, ID number, phone number, as well as health-related personal data and data concerning violations committed due to document plagiarism.

The complainant provides, among other data, a copy of her ID valid until December 3, 2023, confirming the reported facts through a screenshot of the website and a printout of the same.

SECOND: In accordance with the preliminary mechanism for the admission of complaints submitted to the AEPD, as provided in Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), which consists of forwarding them to the data protection delegates designated by the controllers or processors, or to them when they have not designated any, and for the purpose indicated in the aforementioned article, the complaint was forwarded to the INSTITUTO OFTALMOLÓGICO DE ***LOCALIDAD.1 B.B.B., S.L. (hereinafter, the respondent) for analysis and to provide a response within one month, which was verified by a document dated July 20, 2022, received by this Agency.

THIRD: On September 2, 2022, after analyzing the documentation in the file, a resolution was issued by the Director of the Spanish Agency for Data Protection, agreeing to archive the complaint. The resolution was notified to the appellant on September 2, 2022, as recorded in the file.

FOURTH: On September 24, 2022, the complainant filed a motion for reconsideration through the AEPD's Electronic Registry against the

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Resolution issued in the file EXP202206316, in which it expresses its disagreement with the contested resolution, arguing that:

- The respondent is known on the Internet as both Instituto Oftalmológico de ***LOCALIDAD.1 and Centro Oftalmológico B.B.B., with “both clinics” sharing the same postal address.
- The mobile phone number from which a WhatsApp message was sent requesting the removal of the comment published on Google is the same as that provided for contact with the reported clinic.
- The response to the review does not currently appear on Google; however, Google registered it and notified the appellant via email.
- It considers that the respondent is responsible for the malicious disclosure of its personal data, and is therefore subject to the sanctioning regime, necessitating the imposition of a fine against the responsible party and the establishment of compensation for damages.
- A copy of the bank statement is provided, which confirms that the Instituto Oftalmológico de

***LOCALIDAD.1 was the one that charged for the medical services rendered.

- Finally, it requests that its personal data be deleted by the respondent.

FIFTH: On December 20, 2022, the appeal filed was sent to the respondent in accordance with the provisions of Article 118.1 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, for the purpose of allowing them to submit allegations and present any documents and justifications they deemed pertinent within a period of ten working days, which was verified by a response dated January 5, 2023.

SIXTH: Upon observing rational indications of a possible violation of the regulations within the competencies of the Spanish Agency for Data Protection, on February 1, 2023, the Director of the Spanish Agency for Data Protection resolves to ESTIMATE the appeal for reconsideration filed by A.A.A. against the resolution of this Agency issued on September 2, 2022, in order to continue processing the complaint filed.

SEVENTH: On June 8, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 5.1.f) of the GDPR and Article 32 of the GDPR, classified under Article 83.5 of the GDPR and Article 83.4 of the GDPR.

EIGHTH: Once the aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), the respondent submitted a written statement of allegations in which, in summary, it stated the following:

"1. The ophthalmological institute is a company with a NIF ***NIF.1 with partners and an administrator that DOES NOT HAVE its own website nor has it ever owned the website that the complainant is denouncing, and in NO CASE HAS IT BEEN PROVEN OR CAN IT BE...

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TO PROVE ITS OWNERSHIP, NOR DOES IT HAVE ACCESS to the keys of THE SAME AND THEREFORE HAS NO POSSIBILITY OF BEING RESPONSIBLE FOR TAKING ANY TYPE OF ACTION.

2. The ophthalmological institute that DOES NOT have its own medical staff and is dedicated to the rental of medical services and management of premises, with no direct relationship with patients, and therefore HAS NEVER HAD A DIRECT RELATIONSHIP WITH THE COMPLAINANT.

3. THE OPHTHALMOLOGICAL CENTER is a clinic registered with the Ministry of Health of the ***LOCALITY.1na with its own legal personality, distinct from the falsely accused institute, with a specific doctor B.B.B., who has rented the facilities from the institute, and that is the only relationship between both independent entities: rental of facilities and technology. IT IS NOT THE INSTITUTE - among whose partners is not B.B.B. -; therefore, there is no legitimacy of the passive subject to incriminate this company in the personal conflict of the complainant with her doctor. Arguing the coinciding postal address as an argument is absurd given that there is a tenant and landlord relationship, and the institute HAS BEEN CARRYING OUT ITS ACTIVITY in another location for many years, ***ADDRESS.1 in the Avanza clinic, where it has its facilities rented inside. We will provide the contract in a few days when we have gathered the documentation.

4. IT IS FALSE that anyone from the institute has sent any WhatsApp requesting the removal of a comment from said complainant, violating data protection law from any phone of the institute; MOREOVER, in said WhatsApp, THE LPD IS NOT VIOLATED, and therefore linking the WhatsApp as evidence is perverse, given that any possible infringement would,

if it existed, be on the website of the Ophthalmological Center and NOT in the WhatsApp. Additionally, NO copy of said evidence is attached, which we doubt has been presented with notarial authentication or similar reliability. What was the WhatsApp number from which it was sent, and whose is it? Whose WhatsApp was it sent to? Are there proofs of these claims and certificates of ownership of the same? WE ARE NOT PROVIDED WITH THIS DATA IN THE PRESENT REQUEST SO THAT WE CAN DEMONSTRATE THE COMPLETE FALSEHOOD OF THE CLAIMS WITHOUT ANY EVIDENCE. TAKING SCREENSHOTS and manipulating images is something that the complainant should remember; we have already submitted a complaint against B.B.B. for falsification of a private document and identity theft, which is being processed in Court Number 4 of Instruction of ***LOCALITY.1

5. IT IS STATED THAT THE REVIEW - attention of the ophthalmological center B.B.B. - Not of the institute DOES NOT APPEAR ON GOOGLE, and it is true, and Google states on that same page that the REVIEWS ARE NOT VERIFIED!!! If Google states that they are not verified, as can be observed on the website itself...? THE COMPLAINANT SAYS THAT GOOGLE COMMUNICATED TO THE COMPLAINANT BUT TO THIS WRITING NO GOOGLE CERTIFICATE IS ATTACHED, THEREFORE A NEW FALSE STATEMENT. WHERE IS THE GOOGLE CERTIFICATE CERTIFYING THESE FACTS? The repetitive behavior of the complainant is unacceptable without demonstrating any fact, and apparently, the AEPD gives credibility to a photo or photocopy of a screenshot that can be perfectly manipulated by a person who is now the complainant but who had been reported by B.B.B. for identity theft and falsification of a private document BEFORE the AEPD initiated this procedure. THE AEPD HAS NOT ATTACHED THE FALSE EVIDENCE THAT THE NOW COMPLAINANT ARGUES.

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6. The ophthalmological institute HAS NEVER HAD ANY DATA ON THE COMPLAINANT since it has NEVER had direct contact with her. THIS COMPANY ONLY RENTS TECHNOLOGY TO MEDICAL PROFESSIONALS, NEVER TO PATIENTS.

7. THE COMPLAINANT IS SIMULTANEOUSLY REPORTING professional B.-B.B. to the medical association for the same reason: ONE CANNOT REPORT EVERYONE; IF THERE IS A RESPONSIBLE PARTY, IT WILL BE A SPECIFIC LEGAL ENTITY, not everyone. The act of making multiple complaints against different companies and legal entities OBJECTIVELY LACKS legitimacy: THERE IS A SERIOUS AND PERSONAL CONFLICT BETWEEN THE MEDIUM AND THE PATIENT THAT CANNOT INVOLVE THIRD PARTIES. The complaints appear to be personal cross-complaints between two individuals; the complainant's comments on Google are about B.B.B. AND NOT about the institute. The criminal complaint against B.B.B. is for identity theft and threats allegedly made by a military individual to a civilian doctor demanding false reports under the threat of not doing so, along with claims of having hacked, due to military knowledge, access to the doctor's websites.

8. OF THE 400 reviews that appear on the website, no one refers to the institute, not even the complainant in her supposed complaint.

9. HOW CAN ANYONE OTHER THAN THE COMPLAINANT KNOW that ***USER.1 is the complainant? IF GOOGLE LISTS THE COMPLAINANT AS ***USER.1 among more than 400 reviews on that Google website, which we insist is NOT owned by the ophthalmological institute, only the complainant can know this. The falsehood is evident. Furthermore, the alleged private data such as ID number, etc., is freely accessible on multiple websites. And the phone number is false, as it does not match the one the complainant has presented to the medical association.

10. It is claimed, but NO bank account statement is attached to the file. IS A BANK ACCOUNT STATEMENT PROVIDED? HAS THIS STATEMENT BEEN AUTHENTICATED, or is a photocopy sufficient? IS THIS EVIDENCE NOT ATTACHED BECAUSE IF PROVIDED, IT WOULD BE FALSE—falsehood of a private document to add to the false complaint—Where IS it, and why is the INVOICE THAT WOULD DEMONSTRATE THAT THE COMMERCIAL RELATIONSHIP WAS WITH

THE OPHTHALMOLOGICAL CENTER AND NOT WITH THIS INSTITUTE NOT PROVIDED? We repeat, these are different entities to exhaustion. NEITHER HAS THE AEPD ATTACHED the false evidence that the complainant now argues.

11. THIS COMPANY CANNOT DELETE DATA OF THE REPORTED PARTY AS IT HAS NEVER HAD ANY.

12. THIS FILE CHANGES THE CRITERION FROM ARCHIVING TO SANCTIONING WITHOUT ATTACHING A SINGLE PIECE OF EVIDENCE THAT THE COMPLAINANT CLAIMS TO PROVIDE, AND ALTHOUGH WE HAVE ALREADY ARGUED THE LACK OF VERIFICATION OF THE EVIDENCE PROVIDED, GUARANTEEING ITS FALSEHOOD, IT WOULD BE A SERIOUS DENIAL OF DEFENSE NOT TO BE PROVIDED WITH THE EVIDENCE THAT THE COMPLAINANT CLAIMS TO PROVIDE AND THAT SURPRISINGLY CHANGES THE AEPD'S CRITERION: it is mandatory for the AEPD to facilitate access to the new evidence so that the reported party can refute it, certify its falsehood, and initiate the appropriate actions.

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13. ATTEMPTING TO SANCTION THIS COMPANY - which is not the ophthalmological center that owns the GOOGLE website - would violate the principle of the presumption of innocence. In this regard, the Constitutional Court, in Judgment 76/1990, considers that the right to the presumption of innocence entails "that the sanction is based on acts or incriminating evidence of the conduct being reproached; that the burden of proof lies with the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the results of the evidence presented, freely assessed by the sanctioning body, must result in an acquittal." This principle is expressly enshrined for sanctioning administrative procedures in Article 53.2.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, which recognizes the interested party's right "To the presumption of non-existence of administrative liability until proven otherwise." In short, the application of the principle of the presumption of innocence prevents imputing an administrative infraction when no evidence has been obtained that indicates the existence of an infraction.

14. THE PROCEDURE HAS EXPIRED AS IT HAS FAR EXCEEDED THE LEGAL DEADLINES, HAVING PASSED MORE THAN 9 MONTHS SINCE THE LAST ACTION.

15. This is the second time that the AEPD confuses the Institute with B.B.B.; see procedure TD/00124/2021 where a certain C.C.C., coincidentally also a military like the current complainant, claimed against the person of B.B.B. for similar facts - refusing to issue false sick leave reports - and unjustifiably the AEPD attacked the institute. We kindly request that you analyze the repeated situation of legal defenselessness that such confusions lead us to.

16. We await the AEPD to send us the documents submitted by the complainant in a second complaint to verify that they are NOT originals NOR authenticated by any accredited entity, requesting an additional deadline to respond in more detail given that they state in the writing but have NOT provided them.

17. This company initiates actions for false reporting and identity theft against the complainant."

NINTH: On July 3, 2023, the instructor of the procedure agreed to carry out the following evidence:

1. The complaint filed by A.A.A. and its documentation, the documents obtained and generated during the admission phase of the complaint, and the report of prior investigative actions that are part of procedure RR/00592/2022 are considered reproduced for evidentiary purposes.

2. Likewise, the allegations against the initiation agreement of the referenced sanctioning procedure, presented by INSTITUTO OFTALMOLÓGICO DE ***LOCALIDAD.1 B.B.B., S.L., and the accompanying documentation are considered reproduced for evidentiary purposes.

TENTH: On July 20, 2023, a resolution proposal was signed for the Director of the Spanish Agency for Data Protection to sanction INSTITUTO OFTALMOLÓGICO DE ***LOCALIDAD.1 B.B.B., S.L., with NIF ***NIF.1, for the infringement of Article 5.1 f) and 2,000 euros (two thousand euros) for the infringement of Article 32 of the GDPR, totaling 7,000 euros (seven thousand euros).

ELEVENTH: On July 31, 2023, the entity being complained against, in response to said resolution proposal, reiterates the allegations already indicated previously, where it expresses that the complainant has falsely linked the complained party, since the website of the ophthalmological center of Doctor B.B.B. with NIF ***NIF.2 has nothing to do with INSTITUTO OFTALMOLÓGICO DE ***LOCALIDAD.1 with NIF ***NIF.1.

It also attaches the complaint filed by Doctor B.B.B. against the complainant for identity theft. From the actions carried out in the present procedure and the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: Publication of personal data of the complainant (his name and surname, ID number, phone number, as well as personal health data and data related to infractions committed for document plagiarism). It provides a printout of the publication.

SECOND: The complained party indicates that it does not have its own website, nor has it been the owner of the website that the complainant denounces, and that it does not have its own medical personnel as it is dedicated to renting medical services and managing properties, without direct relation to patients, therefore it has never had direct contact with the complainant.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

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The principles regarding the processing of personal data are regulated in Article 5 of the GDPR, which establishes that "personal data shall be:

- a) processed lawfully, fairly, and transparently in relation to the data subject ('lawfulness, fairness, and transparency');
- b) collected for specified, legitimate purposes and not further processed in a manner that is incompatible with those purposes; in accordance with Article 89, paragraph 1, further processing of personal data for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes shall not be considered incompatible with the initial purposes ('purpose limitation');
- c) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed ('data minimization');
- d) accurate and, where necessary, kept up to date; all reasonable steps must be taken to ensure that personal data that are inaccurate with respect to the purposes for which they are processed are erased or rectified without delay ('accuracy');
- e) kept in a form which permits identification of data subjects for no longer than is necessary for the purposes of the processing of personal data; personal data may be stored for longer periods provided that they are processed solely for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes, in accordance with Article 89, paragraph 1, without prejudice to the implementation of appropriate technical and organizational measures as required by this Regulation to protect the rights and freedoms of the data subject ('storage limitation');
- f) processed in a manner that ensures appropriate security of the personal data, including protection

against unauthorized or unlawful processing and against accidental loss, destruction, or damage, using appropriate technical or organizational measures ('integrity and confidentiality').

The data controller shall be responsible for compliance with the provisions of paragraph 1 and be able to demonstrate it ('accountability')."

A breach of Article 5.1 f) of the GDPR may be subject to a fine of up to €20,000,000 or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount, in accordance with Article 83.5 a) of the GDPR, which states "the breach of the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9."

Article 72.1 a) of the LOPDGDD indicates that for the purposes of prescription "in accordance with Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a three-year limitation period:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679."

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III

The security in the processing of personal data is regulated in Article 32 of the GDPR, which establishes the following:

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which shall include, among others:

a) the pseudonymization and encryption of personal data;

b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;

c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;

d) a process for regularly testing, assessing, and evaluating the effectiveness of technical and organizational measures to ensure the security of processing.

2. In assessing the adequacy of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a result of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this Article.

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data only processes such data on instructions from the controller, unless he or she is required to do so by Union or Member State law."

Article 83.4 of the GDPR establishes that administrative fines of up to €10,000,000 or, in the case of an enterprise, an amount equivalent to 2% of the total annual global turnover of the previous financial year, shall be imposed when the following obligations are violated:

a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43;

Article 73.f) of the LOPDGDD, under the heading "Infringements considered serious" states:

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"Based on Article 83.4 of Regulation (EU) 2016/679, serious infringements that constitute a substantial violation of the articles mentioned therein shall be subject to a two-year limitation period, particularly the following:

f) The failure to adopt appropriate technical and organizational measures to ensure a level of security appropriate to the risk of processing, as required by Article 32.1 of Regulation (EU) 2016/679.

IV

In this case, a complaint is presented regarding the use of personal data specifically because after leaving a review on the Google My Business profile of the ophthalmological center, the owner responded by publishing a large amount of personal data, specifically the following:

"(...)"

This Agency received on July 3, 2023, a written response from the party being complained against regarding the initiation of this sanctioning procedure, indicating among other aspects that it does not have its own website, nor has it been the owner of the website denounced by the complainant, and that it does not have its own medical staff as it is dedicated to renting medical services and managing properties, with no direct relationship with patients; therefore, it has never had a direct relationship with the complainant, and accusing it of such facts violates the principle of the presumption of innocence. Despite such statements, the preliminary investigative actions carried out by this Agency allow for the verification that the party being complained against has been processing the following personal data of the complainant: name and surname, ID number, phone number, as well as personal health data and data related to infringements committed due to document plagiarism.

As already indicated in the appeal for reconsideration against the resolution issued in file EXP202206316, a search in GOOGLE MAPS for the Ophthalmological Center B.B.B. yields a link to the website: "***URL.1".

Upon accessing this page, the published information infers a presumed link between the Ophthalmological Center B.B.B. and the Ophthalmological Institute of ***LOCALITY.1.

Furthermore, after conducting a search in the Commercial Registry regarding the "OPHTHALMOLOGICAL INSTITUTE OF ***LOCALITY.1," it is confirmed that the legal entity "OPHTHALMOLOGICAL INSTITUTE OF ***LOCALITY.1 B.B.B. LIMITED COMPANY" is obtained as a result.

Likewise, according to the data in the State Agency for Tax Administration (AEAT) Database, in response to the request from the AEPD for the NIF and tax address of ***COMPANY.1 (Professor B.B.B.), the AEAT communicates the following data: OPHTHALMOLOGICAL INSTITUTE OF ***LOCALITY.1 B.B.B., ***NIF.1 ***ADDRESS.1"

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It should also be noted that the complainant provides email correspondence with the doctor who operated on her, and the email address with which the doctor responds is exactly the same as that listed in the documentation submitted electronically by the respondent. That is to say, the respondent, when presenting its allegations, includes as a contact email exactly the same address that it uses to communicate with the complainant.

These facts would imply that the party being complained against would be violating Article 5.1 f) of the GDPR, indicated in legal basis II, for infringing the duty of confidentiality of the personal data it processes, as it has been confirmed that personal data of the complainant such as her name and surname, ID number, phone number, as well as personal health data and data related to infringements committed due to document plagiarism have been published openly.

Moreover, it is considered that the entity being complained against would have violated Article 32 of

the GDPR, indicated in legal basis III, because the fact that the personal data subject to this complaint has been published indicates the absence of security measures in the processing or a breach of the same, as the respondent opted to publish it without taking into account basic aspects such as the necessary confidentiality that must be maintained regarding the identifying and health data of the patients it processes, which demonstrates that adequate security measures were not applied, since, as stated by the Supreme Court in its Judgment of 15/02/2022 (STS 543/2022), it is not enough to design the necessary technical and organizational means, but their correct implementation and appropriate use are also required, so that the responsible party will also be liable for the lack of diligence in their use and application.

V

Article 58.2 of the GDPR provides as follows: "Each supervisory authority shall have all of the following corrective powers:

- d) to order the controller or processor to bring processing operations into compliance with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time;
- i) to impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in this paragraph, depending on the circumstances of each particular case.

VI

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR.

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Therefore, it is appropriate to determine the sanction to be imposed in accordance with the criteria established in Article 83.2 of the GDPR, and with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 GDPR.

Article 83.2 of the GDPR states that:

"Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for the measures provided for in Article 58, paragraph 2, letters a) to h) and j).

In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the data controller or processor to mitigate the damage suffered by the data subjects;
- d) the degree of responsibility of the data controller or processor, taking into account the technical or organizational measures that have been applied pursuant to Articles 25 and 32;
- e) any previous infringement committed by the data controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the data controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the data controller or processor in relation to the same matter, the compliance with such measures;
- j) adherence to codes of conduct pursuant to Article 40 or to certification mechanisms approved under Article 42, and
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the

financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

In the present case, without prejudice to what results from the instruction, the intentionality and negligence of the complained entity have been taken into account as an aggravating factor, according to Article 83.2 b) of the GDPR, because the intentionality in the unauthorized processing is clear, as it has consciously and deliberately published the complainant's data.

Furthermore, we can consider the category of data processed as an aggravating factor (Article 83.2 g), as it involves not only name, surname, ID number, and phone number, but also other specially protected data, such as health data, according to Article 9 of the GDPR, and data on criminal offenses, according to Article 10 of the GDPR.

For all these reasons, it is considered that the sanction that should be imposed would be 5,000 euros for the infringement of Article 5.1 f) of the GDPR and 2,000 euros for the infringement of Article 32 of the GDPR, totaling 7,000 euros.

VII

Article 58.2 d) of the GDPR states that each supervisory authority may “order the data controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified time frame.”

In the present case, it is appropriate to order the complained party to, within one month from the notification of this resolution, provide evidence to this Spanish Agency for Data Protection of the definitive cessation of the publication of the personal data of A.A.A. as detailed in the grounds IV of this resolution.

It is warned that failure to comply with the order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on INSTITUTO OFTALMOLÓGICO DE ***LOCALIDAD.1 B.B.B., S.L., with NIF ***NIF.1, for an infringement of Article 5.1.f) of the GDPR and Article 32 of the GDPR, classified under Article 83.5 of the GDPR and Article 83.4 of the GDPR, two fines, one fine of 5,000 euros (five thousand euros) and 2,000 euros (two thousand euros) respectively, totaling 7,000 euros (seven thousand euros).

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SECOND: TO RAISE TO FINAL the PROVISIONAL MEASURE agreed upon in the opening agreement of this sanctioning procedure. Consequently, INSTITUTO OFTALMOLÓGICO DE ***LOCALIDAD.1 B.B.B., S.L. with NIF ***NIF.1 is required to provide evidence to this Spanish Agency for Data Protection of the definitive cessation of the publication of the personal data of A.A.A. as detailed in the grounds IV of this resolution within one month from the notification of this resolution.

THIRD: NOTIFY this resolution to INSTITUTO OFTALMOLÓGICO DE ***LOCALIDAD.1 B.B.B., S.L.

FOURTH: ORDER INSTITUTO OFTALMOLÓGICO DE ***LOCALIDAD.1 B.B.B., S.L., with NIF ***NIF.1, that pursuant to Article 58.2.d) of the GDPR, and as a consequence of the high risk posed by the maintenance of the publication in contravention of the fundamental right of the claimant to the protection of their data and the guarantees and freedoms of the affected party, the respondent is ordered to immediately cease such actions.

FIFTH: Warn the sanctioned party that they must comply with the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter

LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No.

IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by writing to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not have knowledge of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

938-010623

Mar España Martí

Director of the Spanish Agency for Data Protection

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